



DECISION

Complaint No. : POS/ROM/04/2025/RM-023

Name and address of the complainant : Mr. Ghulam Farooque,
R/o Village Choudhary Ghulam Muhammad,
Mirwah Gorchani, Taluka Shujjabad, District Mirpurkhas.

Name of the Agency Complained against : Irrigation Department, Jamrao Division Mirpurkhas.

Name & Designation of Investigating Officer : Mr. Zulfiqar Ali Junejo, T.I
Consultant/Regional Director, Mirpurkhas.

Vetted by : **Muhammad Naseer Jamali, Advisor-N**

Subject : **ALLEGED ILLEGAL LIFTING OF MUD FROM THE LAND OF THE COMPLAINANT**

Complaint

Mr. Ghulam Farooq filed a complaint dated 03.01.2025 wherein he stated that he is a khatedar of agricultural land bearing Survey No. 169, on the command of Mirwah minor, Taluka Shujjabad. The Irrigation Department during excavation of the Mirwah minor has damaged a portion of his land by lifting mud from his land without payment of compensation. He approached the concerned authority for restoration/filling of his land but to no avail. Aggrieved by that, he solicited intervention of this Institution.

Proceeding

2. The complaint was admitted under section 10 of Establishment of the office of Ombudsman for the Province of Sindh Act 1991 (amended up to date) after receiving mandatory affidavit on Form-A, copy of CNIC and by condoning the delay.
3. This office issued a notice vide letter dated 07.01.2025 to the Executive Engineer, Jamrao Division, Mirpurkhas for report. In response, the Assistant Executive Engineer, Sub-Division Digri informed vide letter dated 27.01.2025 that Mirwah Minor is passing through land Survey No. 168 and 169 with the width of 115 to 124 feet approximately. The claim of complainant regarding damages to his land will be determined after proper demarcation by the revenue authorities.
4. The Survey Superintendent Mirpurkhas was taken up on board for demarcation of land at site who reported that some portion of complainant's land was damaged by the irrigation department during lining work of Mirwah Minor vide letter dated 05.11.2025.
5. The case was heard on 18.02.2026, attended by Assistant Executive Engineer Sub Division Digri and complainants, Ghulam Farooque and Muhammad Sharif (both brothers). The Assistant Executive Engineer submitted his report the damaged portion of the complainant's land has been filled and his problem has been resolved. The complainant also filed a written statement wherein he confirmed the redressal of his grievance.

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Findings

6. The grievance of the complainant has been redressed by agency on intervention of this office.

Decision

7. In view of the above and in exercise of powers vested in me under section 11 of the Establishment of the Office of Ombudsman for the Province of Sindh, Act 1991 (amended up to date), the complaint is disposed of as redressed, in terms of Regulation 21(c) of Investigation and Disposal of complaints Regulation 2024 of the Ombudsman Act.

8. This also disposes of another complaint bearing No. POS/ROM/04/2025/RM-02 on the same subject filed by the Muhammad Sharif (complainant) against the same agency.

Given under my hand and seal of office.

Sd /-

(MUHAMMAD SOHAIL RAJPUT)

Sitara-e-Imtiaz. PAS

Ombudsman Sindh

Karachi, dated 11-11 March, 2026

